

Kalicharan Yadav v. U.P. Electricity Regulatory Commission

High Court of Judicature at Allahabad · Division Bench · 3 May 2024 · 2024:AHC:79776-DB · Writ-C No. 14619 of 2024
· **Writ disposed; mandamus to UPERC refused; assessment to proceed after reply**

HEADNOTE

A pending s.142 complaint to the Commission does not excuse a reply to a Supply Code assessment notice. Clause/Annexure 6.3(B)(1) coverage is a fact for the assessing officer. The Commission complaint was premature; mandamus to conclude it was refused. Petitioner given three weeks to reply; assessment to be finalized by speaking order within two weeks thereafter.

FACTUAL SUMMARY

An inspection on 14 August 2023 led to a provisional assessment against the petitioner. The licensee treated a 5 September 2023 document as a final assessment; the High Court found it was only a show-cause notice. The petitioner did not reply, saying he was not obliged to because he had complained to the U.P. Electricity Regulatory Commission under section 142 of the Electricity Act, 2003, seeking prosecution and compensation. He sought a mandamus directing the Commission to conclude those proceedings within a fixed time.

HOLDING-UNITS

INTERPLAY · UP-2005::6.3

6.3(B)(1) classification for assessing officer; s.142 premature

HOLDING

Mandamus to the Commission to conclude a s.142 (read with s.146) complaint was refused. A pending Commission complaint does not relieve the consumer of the duty to reply to an assessment show-cause. Even if the consumer claims treatment under 6.3(B)(1) of the U.P. Electricity Supply Code, 2005, that is a fact pleading for the assessing officer, who must pass a reasoned order. The Commission complaint was wholly premature and misconceived. Petitioner given three weeks to reply to the 5 September 2023 notice; assessment to be finalized within two weeks thereafter. ¶ 6-9

FLAG Court refers both to Annexure 6.3(B)(1)/(II) and to Section 6.3(B)(1) of the Code.

PRINCIPLE TAGS

relegate-to-statutory-remedy A pending s.142 complaint to the Commission does not excuse a reply to a Supply Code assessment notice. Clause/Annexure 6.3(B)(1) coverage is a fact for the assessing officer. The Commission complaint was premature; mandamus to conclude it was refused.. ¶ 6-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS COVERED UNDER ANNEXURE/CLAUSE 6.3(B)(1)

Left as a fact pleading for the assessing officer. ¶ 6